

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

OCEAN NETWORK EXPRESS PTE. LTD.; ORIENT OVERSEAS CONTAINER LINE LIMITED; OOCL (EUROPE) LIMITED; EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: January 16, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER TO RESUBMIT PROPOSED DISCOVERY SCHEDULE

On January 13, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed their first joint status report and proposed discovery schedule (“JSR”).

The parties state that they held a “preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”)” in February 2025. JSR at 2. While NBG served its initial disclosures on Evergreen and Yang Ming in February 2025, and Respondents filed their joint answer to the complaint on February 3, 2025, Respondents have yet to make their initial disclosures to NBG. *Id.* at 1; 46 C.F.R. § 502.141(b) (“*Initial Disclosures*.” Except as otherwise stipulated or ordered by the Commission or presiding officer, and except as provided in this subpart...all parties must, within 7 days of service of a respondent’s answer to the complaint...and without awaiting a discovery request, provide each other [with the information listed in (1), (2), and (3)].”). Respondents do not explain why they did not make the initial disclosures in a timely manner but now state that they will do so “within the next 10 days,” resulting in further delay in this proceeding. JSR at 1.

The parties propose a discovery schedule that is well over the 150 days set in the Commission’s Rules, which, like the initial disclosures, is tied to when a respondent files its

answer. 46 C.F.R. § 502.141(g). Here, the answer was filed nearly a year ago. The parties propose closing discovery in mid-November 2026, 11 months from now, and postponing the start of briefing until January 2027. The schedule as proposed will result in substantially more delay and is not adopted. Since Respondents have not yet made their initial disclosures, no requests for production of documents or interrogatories have been made, and no agreements have been reached on search terms for responsive documents, it is premature to establish an 11-month discovery schedule. Accordingly, the Parties are **ORDERED** to submit a second joint status report no later than January 23, 2026, that proposes a schedule to complete discovery by July 1, 2026, 166 days from today.

The parties are encouraged to explore the use of stipulations of fact and other tools to narrow the issues and advance discovery.



Linda S. Harris Crovella
Administrative Law Judge